

24STCV30068 24STCV30068

County: los-angeles

Division: Civil Law and Motion

Department: 512

Hearing date: 2026-08-28

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Case Number: 24STCV30068 Hearing Date: August 28, 2026 Dept: 512

HEARING

DATE: Fri., August 28, 2026 JUDGE /DEPT: Mkrtchyan/512

CASE NAME: Tati, et al. v. Nissenson COMPL. FILED: 11-14-24

CASE NUMBER: 24STCV30068

NOTICE:

OK

PROCEEDINGS: MOTION TO COMPEL ADDITIONAL DEPOSITION OF PLAINTIFF

MOVING PARTY: Defendant Lenard Nissenson

RESP. PARTY: Plaintiffs Ramya Tati and Naga Vadapalli

MOTION TO COMPEL ADDITIONAL DEPOSITION

(CCP

§ 2025.610)

TENTATIVE RULING:

Defendant Lenard Nissenson's Motion for Leave to Conduct Additional Deposition of Plaintiff Naga Vadapalli is GRANTED IN PART and DENIED IN PART as described by the Court herein.

Pursuant to the stipulation of the parties, a second deposition of

Vadapalli is to be taken.

Pursuant to this Court's order, the second deposition of Vadapalli is limited to matters relating to the 5/4/26 lumbar micro decompression surgery, including any additional or undisclosed treatments, complaints, conditions, consultations, and any associated or tertiary impacts or changes the surgery has had on Vadapalli's injuries and symptoms related to the surgery.

Moving party is ordered to give notice.

SERVICE:

☒ Proof of Service Timely Filed (CRC, rule 3.1300) OK

☒ Correct Address (CCP §§
1013, 1013a) OK

☒ 16/21 Court Days Lapsed
(CCP §§ 12c, 1005(b)) OK

OPPOSITION: Filed
on August 17, 2026 ☐
Late ☐ None

REPLY: Filed
on August 21, 2026 ☐
Late ☐ None

ANALYSIS:

I.
Background

On November 14, 2024, Plaintiffs Ramya Tati and Naga Vadapalli ("Plaintiffs") filed an action against Defendant Lenard Nissenson ("Defendant") alleging causes of action for Motor Vehicle and General Negligence. (Compl., pp. 1, 3.) The underlying action arises from a motor vehicle accident between the parties on November 30, 2022, at "the I-5 Freeway at or near Triggs Street exit, in the city of Los Angeles, County of Los Angeles, State of California." (Compl., MV-1.)

On January 6, 2025, Defendant filed an Answer.

On July 24, 2026, Defendant filed the instant Motion for Leave to Conduct Additional Deposition of Plaintiff Naga Vadapalli (the "Motion").

On August 17, 2026, Vadapalli filed an Opposition.

On August 21, 2026, Defendant filed a Reply.

II. Legal Standard

Code of Civil
Procedure section 2025.610 states, in pertinent part:

(a) Once
any party has taken the deposition of any natural person, including that of a party to the action, neither the party who gave, nor any other party who has been served with a deposition notice pursuant to Section 2025.240 may take a subsequent deposition of that deponent.

(b) Notwithstanding
subdivision (a), for good cause shown, the court may grant leave to take a subsequent deposition, and the parties, with the consent of any deponent who is not a party, may stipulate that a subsequent deposition be taken.

(Code Civ.
Proc., § 2025.610.)

III. Discussion

As an initial
matter, the Court finds that the parties have stipulated to a second deposition of Vadapalli regarding his "May 4, 2026 lumbar micro decompression surgery and

the change in his lumbar spine condition.” (Motion; Opp., pp. 1-2; Reply, p. 2.) However, the parties dispute the scope and breadth of the second deposition as it pertains to matters beyond the 5/4/26 surgery and Vadapalli's lumbar spine condition. (See Opp., Reply.)

Specifically, in the Opposition, Vadapalli requests the Court limit the second deposition to the lumbar spine given that the only material change to Vadapalli since Vadapalli's first deposition in 2025 was the 5/4/26 surgery and Vadapalli's changed condition therefrom. (Opp., pp. 3-5.) Vadapalli asserts that Defendant has not shown good cause to reopen and reexamine Vadapalli on issues that existed and were fully open in 2025 for Vadapalli's first deposition, such as the issues of “how the collision occurred, liability, Plaintiff's pre-existing conditions, his employment and wage-loss claims as they stood, and every other subject unrelated to the lumbar injury.” (Opp., p. 5.)

In Reply, Defendant requests an unlimited second deposition of Vadapalli on the grounds that any limitations would prevent Defendant from obtaining testimony about pertinent information to Defendant's development of the case, such as how the lumbar spine surgery impacted other areas of Vadapalli's body/places of injury, and any potential side effects from the surgery. (Reply, pp. 4-5.) Further Defendant suggests the Court's prior trial continuance on the grounds of the lumbar spine surgery and the Court's denial of Vadapalli's ex parte application to limit the deposition demonstrates the instant Motion should be granted in full and without limitation. (Reply, pp. 4-5.)

Pursuant to the stipulation of the parties, the Court finds a second deposition of Vadapalli is to be taken.

As to the scope and breadth of the second deposition of Vadapalli, the Court finds Defendant has demonstrated good cause for the second deposition of Vadapalli to include matters “relating to the lumbar decompression surgery, and any additional or undisclosed treatments, complaints, consultations or the like, and any associated or tertiary impacts or changes the surgery has had on Plaintiffs' injuries, symptoms, or other relevant matters arising from the surgery.” (Reply, p. 2.) Indeed, the Court finds the nature of the action, the nature of the damages requested in the action, and the nature of Vadapalli's lumbar

decompression surgery is good cause for the Court to order this specific scope for Vadapalli's second deposition. Notably, Vadapalli also states there is no dispute to Defendant deposing Vadapalli as to "the surgery, the lumbar condition it treated, the workup and treatment leading up to it, his post-surgery course, and the lumbar-related damages he now claims. That gives Defendant the complete, sworn, account of the new development it says it needs." (Opp., p. 5.)

However, the Court does not find Defendant has shown good cause for an unrestricted second deposition of Vadapalli that goes beyond the aforementioned scope. Defendant had the opportunity to depose Vadapalli on all matters unrelated to the lumbar micro decompression surgery in the first deposition in 2025, and the Court does not find Defendant has presented any evidence to the contrary. Further, the Court does not find that a trial continuance and denied ex parte application conclusively demonstrates how the Court should rule on the instant Motion contrary to what Defendant suggests. Indeed, the considerations for a trial continuance are different than the considerations for a second party deposition, and an ex parte application is held to different requirements than a noticed motion. Defendant fails to provide any legal authority demonstrating the Court find otherwise.

Finally, the Court notes that, to the extent Vadapalli is concerned that Defendant may exceed the scope the Court has ordered for Vadapalli's second deposition, the Court is satisfied that the typical tools afforded deponents and their counsel in depositions – such as objections – are sufficient to ensure Vadapalli only provides responses to questions relevant to the lumbar spine surgery and matters impacted therefrom.

For these reasons, the Motion is GRANTED IN PART and DENIED IN PART as described by the Court herein.

IV.

Conclusion & Order

Based on the foregoing, Defendant Lenard Nissenson's Motion for Leave to Conduct Additional Deposition of Plaintiff Naga Vadapalli is GRANTED IN PART and DENIED IN PART as described by the Court herein.

Pursuant to the stipulation of the parties, a second deposition of Vadapalli is to be taken.

Pursuant to this Court's order, the second deposition of Vadapalli is limited to matters relating to the 5/4/26 lumbar micro decompression surgery, including any additional or undisclosed treatments, complaints, conditions, consultations, and any associated or tertiary impacts or changes the surgery has had on Vadapalli's injuries and symptoms related to the surgery.

Moving party is
ordered to give notice.